

92. Power to make rules in respect of matters in the chapter. – (1)
The Central Government may, by notification, make rules to carry out the purposes of this chapter.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely :

- (a) the factors to which the central Government shall have regard under clause (e) of the first proviso to sub-section (1) of sec. 89 ;
- (b) the form and manner in which an application may be made under sub-section (2) of Sec. 89 ;
- (c) the form in which a statement is required to be exhibited under sub-section (3) of sec.89.
- (d) the manner in which the dates of public auction may be notified under sub-section (1) of Sec. 90 ;
- (e) the manner of crediting to the railway administration the price of goods referred to in sub-clause (iii) of Cl. (a) of the proviso to sub-section (3) of Sec. 90.

Comments

Section 92 empowers the Central Government to make rules for the purposes of Chapter X. The matter in respect of which such rules may be made are enumerated in sub-section (2).

Rules - Whether validity framed. – The question whether rules are validly framed to carry out the purposes of the Act can be determined on the analysis of the provisions of the Act.

CHAPTER XI

Responsibilities of Railway Administration as Carriers

93. General responsibilities of a railway administration as carrier of goods.
– Save as otherwise provided in this Act, a railway administration shall be responsible for the loss, destruction, damage or deterioration in transit, or Non-delivery of any consignment, arising from any cause except the following namely.
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- i. act of God ;